

Court No. - 29

Case :- WRIT - C No. - 16566 of 2013

Petitioner :- Anand Kumar Gupta

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Manoj Chaudhary

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Sunil Ambwani,J.

Hon'ble Bharat Bhushan,J.

Learned Standing Counsel appears for respondent no. 1. Shri Mahboob Ahmad has accepted notice on behalf of respondent nos.2 and 3.

It is submitted by learned counsel appearing for the petitioner, that the electricity connection of petitioner was disconnected on the ground that there is some property dispute between the petitioner and his sister. It is stated that she has illegally sold the house on the basis of a will set up by his sister Seema Gupta to Shri Trilok Verma on 20.6.2007. The petitioner has filed a Suit No. 385 of 2008 (Anand Kumar vs. Km. Seema) for cancellation of will and sale deed which is pending in the Court of Civil Judge (SD), Allahabad. The petitioner has completed all the formalities and deposited the entire amount required by the respondents for a new electricity connection but the electricity connection has not been sanctioned on account of the alleged pending dispute.

Prima facie, we find that the dispute between the brother and sister cannot be a ground to refuse to provide electricity connection, to the occupant of any house provided such occupier complies with all the conditions and deposits the entire amount for new connection. In such case, an undertaking from the person, which may satisfy the department with his occupation, should be treated, under the U.P. Electricity Supply Code, 2005 to be sufficient.

Shri Mahboob Ahmad will seek instructions in the matter.

List on **17.4.2013**.

The respondents are directed to provide the new connection of electricity (a monopoly of the UP Power Corporation) within 15 days or to show cause by filing counter affidavit.

Order Date :- 21.3.2013

RKP

Court No. - 32

Case :- WRIT - C No. - 16566 of 2013

Petitioner :- Anand Kumar Gupta

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Manoj Chaudhary

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Prakash Krishna,J.

Hon'ble Manoj Kumar Gupta,J.

None is present on behalf of the respondents. This Court on 21st of March, 2013 issued an interim mandamus to provide electricity connection to the petitioner's house or to show cause.

Learned counsel for the petitioner submits that neither counter affidavit has been filed nor electricity connection has been provided to the petitioner.

List on 2nd of July, 2013. On that date the respondent no.3 is directed to appear in person to answer as to why contempt proceedings may not be initiated against him for non compliance of the order dated 21st of March, 2013.

(M.K. Gupta, J) (Prakash Krishna, J)

Order Date :- 30.5.2013

LBY

Court No. - 3

Case :- WRIT - C No. - 16566 of 2013

Petitioner :- Anand Kumar Gupta

Respondent :- State Of U.P. Thru Secy. And Others

Counsel for Petitioner :- Manoj Chaudhary

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Rakesh Srivastava,J.

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel appearing for the respondents no. 2 & 3 as well as Sri Vivek Chandra Verma, learned counsel, who has filed an impleadment application to implead the applicant as respondent no.4.

We find from the order sheet when the case was taken up on 21.03.2013 it was contended on behalf of the petitioner before the Court that the electricity of the petitioner had been disconnected on the ground of some property dispute between the petitioner and his sister. It was also stated that the sister of the petitioner illegally sold the house on the basis of a Will to the present applicant who has filed an application for being impleaded as a party. Thereafter, the petitioner has filed a suit bearing no. 385 of 2008 (Anand Kumar vs. Km. Seema) for cancellation of Will and sale deed in the court of Civil Judge (Senior Division), Allahabad. It was also contended by the petitioner that all formalities had been completed for supply of electric connection.

On consideration of such submissions the Court was prima facie of the view that the dispute between the brother and sister cannot be a ground to refuse supply of electricity to the occupant of any house provided such occupier complies with all the conditions and deposits the entire amount for new connection.

With the above observation the Court directed to provide

new connection within 15 days or to show cause by filing counter affidavit.

In the meantime a new connection has been provided to the petitioner.

Learned counsel appearing for the applicant seeking to be impleaded submits that if a new connection is given to the petitioner, he may take a plea in the pending civil suit that he is in possession of the part of the house. The electricity having been given by the order of the Court, we find no justification in such apprehension.

We therefore, **dispose of** this writ application with the observation that the electric connection having been given to the petitioner by the order of this Court, such connection will not be taken as a piece of evidence in support of the claim of his possession.

The personal appearance of the officer in the Court is dispensed with.

Order Date :- 2.7.2013
PKB